

#	Case Name	Tentative
	2021-01225158	There is no proof of service of the moving papers on the client or anyone else. "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case." (Cal. Rules of Court, rule 3.1362(d).) While the supporting attorney declaration states that counsel has served the client via mail, this attestation alone is not sufficient to satisfy the service by mail requirements of Code of Civil Procedure section 1013, subdivision (a), or the proof of service requirements of Code of Civil Procedure section 1013a. Moving counsel is ORDERED to (1) properly serve all moving papers, including notice of the continued hearing date above, on the client and all other parties who have appeared in the case; and (2) file proof of service of the same, by no later than Friday 8/28/26. Moving counsel shall give notice of this ruling.
54.	City of Huntington Beach v. Willard Marine, Inc. 2026-01547404	Defendant Willard Marine, Inc.'s motion to strike portions of the Complaint is DENIED. (Code Civ. Proc., §§ 435, 436 [authorizing motion].) Moving party shall file an Answer to the Complaint within 10 days. No point is served in striking a prayer for attorney fees, as "there [is] no requirement they be pled at all." (<i>Snatchko v. Westfield LLC</i> (2010) 187 Cal.App.4th 469, 497.) The Complaint alleges sufficient facts supporting the validity of the challenged liquidated damages provision (Complaint, ¶ 14), which allegations are presumed correct. (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255 ["In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth"].) Whether the liquidated damages provision is valid, or an unenforceable penalty, requires an examination of "the <u>actual circumstances</u> of a liquidated damages clause." (Civ. Code, § 1671, subd. (b); <i>Graylee v. Castro</i> (2020) 52 Cal.App.5th 1107, 1114, emphasis added; see also <i>Krechuniak v. Noorzoy</i> (2017) 11 Cal.App.5th 713, 722 ["demonstrating the provision is unreasonable requires <u>consideration of existing circumstances relevant to the formation of the contract</u> ... the parties' intent should be derived from the entire agreement and its surrounding circumstances;" emphasis added, internal citations omitted.) Thus, the validity of the liquidated damages provision cannot be determined in the context of a

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		motion to strike, where the allegations in the Complaint are presumed to be true. The case management conference is continued to February 8, 2027 at 9:00 a.m. in Department C28. Plaintiff shall give notice of this ruling.
55.	Simpson v. A Mission for Michael Inc. 2025-01504467	<u>Demurrer to Third Amended Complaint</u> Defendant A Better Life Recovery LLC dba A Mission for Michael's (AMFM) demurrer to third amended complaint is OVERRULED. AMFM shall answer the third amended complaint (TAC) within 10 days. The TAC states facts sufficient to constitute the first and third causes of action for dependent adult abuse and wrongful death. (See <i>Covenant Care, Inc. v. Superior Court</i> (2004) 32 Cal.4th 771, 783 [dependent adult abuse based on neglect, elements]; <i>Carter v. Prime Healthcare Paradise Valley LLC</i> (2011) 198 Cal.App.4th 396, 406-407 (<i>Carter</i>) [same]; see <i>Winn v. Pioneer Medical Group, Inc.</i> (2016) 63 Cal.4th 148, 155; Welf. & Inst. Code, §§ 15610.57, subds. (a)(1), (b) [neglect]; <i>Quiroz v. Seventh Ave. Center</i> (2006) 140 Cal.App.4th 1256, 1263 [wrongful death, elements].) Contrary to AMFM's contentions, the TAC adequately alleges the decedent was a "dependent adult" within the meaning the Elder Abuse and Dependent Adult Civil Protection Act (Act), and that AMFM was a "care custodian." (See Welf. & Inst. Code, § 15610.23, subd. (a) [dependent adult]; <i>id.</i>, § 15610.17, subds. (j), (y) [care custodian]; Health & Saf. Code, § 1502, subd. (a)(7); see also TAC ¶¶ 16-17, 24, 26-28.) The TAC also adequately alleges AMFM acted with "recklessness." (See <i>Carter, supra</i>, 198 Cal.App.4th at p. 407 [recklessness]; <i>Delaney v. Baker</i> (1999) 20 Cal.4th 23, 31-32 ["Recklessness, unlike negligence, involves more than 'inadvertence, incompetence, unskillfulness, or a failure to take precautions' but rather rises to the level of a 'conscious choice of a course of action ... with knowledge of the serious danger to others involved in it.' "]; CACI No. 3113 [under the Act, "recklessness" means the defendant "knew it was highly probable that [its] conduct would cause harm and [it] knowingly disregarded this risk"].) The TAC alleges AMFM